

Superior Court of the State of California
County of Orange

TENTATIVE RULINGS
DEPARTMENT C27
JUDGE BRADLEY ERDOSI

LAW AND MOTION IS HEARD ON MONDAYS AT 2:00 P.M.

Tentative Rulings: The Court endeavors to post tentative rulings on the Court's website by 10:00 a.m. on the date of the afternoon hearing. However, ongoing proceedings or other pressing matters may delay the posting of tentative rulings. Additionally, tentative rulings may not be posted in every case. Please **do not** call the department for tentative rulings if tentative rulings have not been posted. The Court will not entertain a request to continue a hearing or the filing of further documents once a tentative ruling has been posted.

Submitting on Tentative Rulings: If all counsel intend to submit on the Court's tentative ruling and do not desire oral argument, please advise the Courtroom Clerk or Courtroom Attendant by calling (657) 622-5227. Please do not call the department unless **all** parties submit on the tentative ruling. If all sides submit on the Court's tentative ruling and so advise the Court, the tentative ruling will become the Court's final ruling and the prevailing party is ordered to give notice of the ruling and prepare an order for the Court's signature, if appropriate, under Cal. R. Ct. 3.1312.

Court Reporters: Official court reporters (i.e., court reporters employed by the Court) are **not** typically provided for law and motion matters in this Department. If a party desires a record of a law and motion proceeding, it is the party's responsibility to provide a court reporter.

Parties must comply with the Court's policy on the use of privately retained court reporters, which can be found by accessing the following link:

https://www.occourts.org/system/files?file=privately_retained_court_reporter_policy.pdf

Additional information about the availability of court reporters can be found at:
<https://www.occourts.org/divisions/court-reporter-services/availability-court-reporters>

Non-Appearances: If no one appears for the hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The Court also may make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

Appearances: Department C27 conducts non-evidentiary proceedings, such as law and motion, remotely, by Zoom videoconference pursuant to CCP §367.75 and Orange County Local Rule (OCLR) 375. All counsel and self-represented parties appearing for such hearings must check-in online through the Court's civil video appearance website at <https://www.occourts.org/civil-remote-hearings> prior to the commencement of their hearing. Once the online check-in is completed, participants will be prompted to join the courtroom's Zoom hearing session. The Court's policies and procedures, including Guidelines for Remote Proceedings are available at <https://www.occourts.org/general-information/news-events/covid-19-response/civil-covid-19-response> and will be strictly enforced. A helpful video detailing how to check-in and appear by video can be found at <https://www.youtube.com/embed/CU090y2oaWM?rel=0&autoplay=1>.

Public Access: The courtroom remains open for all evidentiary and non-evidentiary proceedings.

No filming, broadcasting, photography, or electronic recording is permitted of the video session pursuant to California Rules of Court, rule 1.150 and OCLR 180.

TENTATIVE RULINGS

August 26, 2026

	Case Name	Tentative
101	2024-01401763 Rosette us. Uppal	1. Demurrer to Amended Complaint 2. Demurrer to Amended Cross-Complaint 3. Motion to Strike – Anti-SLAPP 4. Motion to Strike Portions of Cross-Complaint 5. Case Management Conference <u>Demurrer to First Amended Complaint (FAC)</u> Defendants Prem Uppal, Satinder Uppal, and SNWG Always, LLC’s Demurrer to Plaintiff Luanne Rosette’s First Amended Complaint (FAC) is sustained in part and overruled in part, as set forth below. Rosette has 20 days leave to amend. 1. Breach of contract and money had and received (COAs 1 and 2) – sustained with leave. “ ‘A cause of action for breach of contract requires pleading of a contract, plaintiff's performance or excuse for failure to perform, defendant's breach[,], and damage to plaintiff resulting therefrom.’ ” (<i>Munoz v. MacMillan</i> (2011) 195 Cal.App.4th 648, 655, internal citations omitted.) Here, the Uppals argue that the FAC does not plead which operative contract provisions are breached. The Court agrees. Further, the complaint must indicate on its face whether the contract is written, oral, or implied by conduct. (Code Civ.Proc., § 430.10, subd. (g).) If the action is based on an alleged breach of a written contract, the terms must be set out verbatim in the body of the complaint or a copy of the written instrument must be attached and incorporated by reference. (<i>Wise v. Southern Pacific Co.</i> (1963) 223 Cal.App.2d 50, 59.) Here, none is attached. A common count is not a specific cause of action, however; rather, it is a simplified form of pleading normally used to aver the existence of various forms of monetary indebtedness, including that arising from an alleged duty to make restitution under an assumpsit theory. (<i>See Zumbun v. University of Southern California</i> (1972) 25 Cal.App.3d 1, 14–15.) When a common count is used as an alternative way of seeking the same recovery demanded in a specific cause of action, and is based on the same facts, the common count is demurrable if the cause of action is demurrable. (<i>See Farmers Ins. Exchange v. Zerin</i> (1997) 53 Cal.App.4th 445, 459–460.) Here, this claim is also subject to demurrer for the same reasons. Thus, the Demurrer is sustained. 2. Negligence (COA 3) – sustained with leave

The elements of a cause of action for negligence are: the “defendant had a duty to use due care, that he [or she] breached that duty, and that the breach was the proximate or legal cause of the resulting injury. (*Vasquez v. Residential Investments, Inc.* (2004) 118 Cal.App.4th 269, 278, internal citation omitted.) “[E]very [negligence] case is governed by the rule of general application that all persons are required to use ordinary care to prevent others from being injured as the result of their conduct.” (*Weirum v. RKO General, Inc.* (1975) 15 Cal.3d 40, 46.)

Here, the FAC alleges that “Defendants breached their duties by failing to recognize their rent increase was illegal and by pressuring Plaintiff to pay it.” (FAC, ¶29.)

The Court notes that there are allegations in the FAC about uninhabitable conditions on the premises, but those are pled later and not included in the negligence cause of action. (*Peterson v. Sup.Ct. (Banque Paribas)* (1995) 10 Cal.4th 1185, 1205-1206, tenant injured by a defect in the premises (uninhabitable condition) may bring a negligence action if the landlord breached its duty to exercise reasonable care to repair promptly any conditions (of which the landlord had actual or constructive notice) that arise during the tenancy and render the dwelling uninhabitable.

Rather, the FAC alleges that “Defendants breached their duties by failing to recognize their rent increase was illegal and by pressuring Plaintiff to pay it.” (FAC, ¶29.) This does not appear to state a claim for negligence.

Thus, the Demurrer is sustained.

3. Conversion (COA 4) – overruled

“Conversion is the wrongful exercise of dominion over the property of another. The elements of a conversion claim are: (1) the plaintiff's ownership or right to possession of the property; (2) the defendant's conversion by a wrongful act or disposition of property rights; and (3) damages.” (*Lee v. Hanley* (2015) 61 Cal.4th 1225, 1240.)

“ ‘Money cannot be the subject of a cause of action for conversion unless there is a specific, identifiable sum involved, such as where an agent accepts a sum of money to be paid to another and fails to make the payment.’ A ‘generalized claim for money [is] not actionable as conversion.’ ” (*PCO, Inc. v. Christensen, Miller, Fink, Jacobs, Glaser, Weil & Shapiro, LLP* (2007) 150 Cal.App.4th 384, 395.)

Here, the FAC alleges that “In demanding and taking possession of the extra \$1,000 in cash paid by Plaintiff pursuant to the illegal rent increase, Defendants converted said property to their own use and exercised ownership over said property.” (FAC, ¶33.)

In the above allegations, incorporated into this claim, Plaintiff allege that “As of the original filing of this lawsuit, Plaintiff had paid an extra \$1,000 per week for approximately 95 weeks for a total of \$95,000.”

Thus, the Demurrer properly states a claim.

4. Receiving stolen property in violation of Penal Code §496 (COA 5) – overruled

Penal Code section 496 provides,

“(a) Every person who buys or receives any property that has been stolen or that has been obtained in any manner constituting theft or extortion, knowing the property to be so stolen or obtained, or who conceals, sells, withholds, or aids in concealing, selling, or withholding any property from the owner, knowing the property to be so stolen or obtained, shall be punished by imprisonment in a county jail for not more than one year, or imprisonment pursuant to subdivision (h) of Section 1170.

...

(c) Any person who has been injured by a violation of subdivision (a) or (b) may bring an action for three times the amount of actual damages, if any, sustained by the plaintiff, costs of suit, and reasonable attorney's fees.”

The elements of this cause of action are: “(1) that the particular property was stolen, (2) that the accused received, concealed or withheld it from the owner thereof, and (3) that the accused knew that the property was stolen. (*Finton Construction, Inc. v. Bidna & Keys, APLC* (2015) 238 Cal.App.4th 200, 213.) A violation of the statute requires some form of criminal intent. (*See Siry Investment LP v. Farkenhondehpour* (2022) 13 Cal.5th 333, 361-362 [discussing the criminal intent requirement under Penal Code section 496 and contrasting violations of the statute to “ordinary commercial defaults” caused innocently or inadvertently].)

Here, Plaintiff alleges that Defendants threatened to evict Plaintiff if she did not pay the illegal rent increase and with specific intent to deprive Plaintiff of her property, Defendant took and withheld her rent payments.. (FAC, ¶¶39-40.) The Court finds these allegations sufficient at the pleadings stage.

5. Violation of Civil Code § 1946.2(h) (COA 6) – overruled

Plaintiff brings this sixth cause of action pursuant to the Tenant Protection Act, Civil Code § 1946.2 (h). (FAC, ¶45.)

The Tenant Protection Act of 2019 (Civ. Code §§ 1946.2, 1947.12 and 1947.13) imposes statewide rent control and just cause eviction requirements.

Plaintiff alleges that the service of the 3-day notice to is the bad act here because there was no “just cause” for the eviction. The FAC alleges Plaintiff had occupied the property continuously since March 2020, well beyond the statutory occupancy period; Defendants served a three-day notice to pay rent or quit on December 17, 2024; the notice sought termination without stating the just cause required by section 1946.2; Defendants had not provided the required statutory disclosures; and Prem Uppal filed an unlawful detainer action one week later after Plaintiff refused to pay the amount stated in the notice. (FAC ¶¶ 10-19, 45-50.)

This claim is properly pled.

6. Wrongful Constructive Eviction (COA 7) – overruled

California recognizes the existence of such a tort for constructive eviction. (*Ginsberg v. Gamson* (2012) 205 Cal.App.4th 873, 900.) A “constructive eviction” occurs where intolerable conditions render the premises so unfit or so interfere with beneficial enjoyment of the unit that the tenant is forced to vacate. Recoverable damages include whatever amounts are necessary to compensate the tenant for detriment proximately caused by the “eviction” or likely to result therefrom—generally, the value of the tenant's

unexpired term, plus moving costs and consequential mental anguish, pain and physical injury. In an appropriate case (“malice, oppression or fraud” proven by “clear and convincing evidence,” Civ. Code § 3294), punitive damages are also awardable. (*Stoiber v. Honeychuck* (1980) 101 Cal.App.3d 903, 925-926.)

Here, the FAC alleges that on 08/14/2024, Plaintiff reported the uninhabitable conditions at the subject property to Anaheim City Code Enforcement. (FAC ¶ 57.) Plaintiff did not vacate the subject property until on or about 08/31/2025, alleging she did so under duress due to uninhabitable conditions and Defendants’ threats of eviction. (FAC ¶¶ 66–67.)

The Uppals argue that it is unreasonable that Plaintiff stayed over a year and thus there was no real constructive eviction here.

The FAC alleges an escalating course of incidents, not one completed event on August 14, 2024. The August report was followed by citations in August and October 2024; continuing failure to correct the unpermitted door; a January 2025 citation identifying new rodent, wall, and electrical hazards; a June 2025 citation identifying additional sanitation, infestation, dilapidation, and weather-protection problems; and allegations that violations remained outstanding as of January 2026. (FAC ¶¶ 57-64.)

Based on the allegations, at this stage in the proceedings, it is improper to make a determination that the timing of Plaintiff’s departure was unreasonable. The facts as pled are sufficient to overcome the Demurrer.

Thus, the claim is properly alleged.

SNWG Always, LLC

The Demurrer is sustained in its entirety, with leave to amend.

The FAC alleges only that SNWG Always, LLC received rent while all operative conduct is attributed to individual defendants. Furrher, the alter ego allegations lack factual support.

Defendants are ordered to serve notice.

Demurrer and Motion to Strike to Third Amended Cross-Complaint

A. Demurrer to TACC

Cross-Defendant Luanne Rosette’s Demurrer to Prem Uppal and Satinder Uppal’s Third Amended Cross-Complaint (TACC) is sustained as to the third cause of action for negligent misrepresentation and the sixth cause of action for promissory estoppel, without leave to amend. It is otherwise overruled.

Request for Judicial Notice

The Uppals ask the Court to judicially notice the original and amended Cross-Complaints and various Court Orders in this case. These requests are denied as unnecessary. “It is not necessary to ask the court to take judicial notice of materials previously filed in the case; you should simply call the court’s attention to such papers.” (Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 2025) ¶ 9.53.1a.)

B. Motion to Strike

The Motion to strike is granted. Paragraphs 1-12 of the TACC are stricken.

Rosette is ordered to answer the TACC within 20 days.

Rosette shall serve notice of this Order.

Anti-SLAPP Motion

The Court denies Cross-Defendant Luanne Rosette’s Special Motion to Strike (Anti-SLAPP) as to the fourth cause of action in Prem Uppal and Satinder Uppal’s Third Amended Cross-Complaint (TACC) for slander of title.

As an initial matter, the Court denies the motion because it is untimely under Code Civ. Proc., § 425.16(f). Specifically, the Second Amended Cross-Complaint (SACC) filed on 10/31/25 also contained the 4th cause of action for slander of title. (ROA 60.) Rosette filed a demurrer to the SACC, but chose not to file an Anti-SLAPP motion. Of note, the demurrer was withdrawn because the parties stipulated to the filing of the TACC. (ROA 73)

Subject to the trial court's discretion under CCP § 425.16(f) to permit late filing, a defendant must move to strike a claim within 60 days of service of ***the earliest complaint that contains that cause of action***. Defendant cannot use the fact that plaintiff filed an amended complaint to attack claims that appeared in a prior complaint. Rationale: the anti-SLAPP statute “is not a vehicle for a defendant to obtain a dismissal of claims in the middle of litigation; it is a procedural device to prevent costly, unmeritorious litigation at the initiation of the lawsuit. (*Newport Harbor Ventures, LLC v. Morris Cerullo World Evangelism* (2018) 4 Cal.5th 637, 645; *Starview Property, LLC v. Lee* (2019) 41 Cal.App.5th 203, 206—where amended complaint is based on same facts as alleged in original complaint but pleads new claims for relief, anti-SLAPP motion may be filed within 60 days of service of amended complaint if it addresses newly pled claims.)

Thus, the Court denies the motion as untimely. However, even considering the merits, the motion is unmeritorious for the reasons set forth below.

Legal Standard

Code Civ. Proc. §425.16 provides in relevant part: “A cause of action against a person arising from any act of that person in furtherance of the person’s right of petition or free speech under the United States or California Constitution in connection with a public issue shall be subject to a special motion to strike, unless the court determines that the plaintiff has established that there is a probability that the plaintiff will prevail on the claim.”

Where the motion to strike is directed to the entire complaint, the trial court must deny the motion if there is any claim that does not arise from protected activity. The burden is on the moving party to identify the specific claims it seeks to strike. “This is crucial because complaints frequently include claims arising from protected activity alongside claims arising from unprotected activity, as well as ‘so-called’” mixed causes of action that combine the two. (*Park v. Nazari* (2023) 93 Cal.App.5th 1099, 1107-1109 (*quoting Baral v. Schnitt* (2016) 1 Cal.5th 376, 381)—“If a defendant wants the trial court to take a surgical approach, whether in the alternative or not, the defendant must propose where to make the incisions”]

The court’s determination of an anti-SLAPP motion is a two-step process.

First, the court determines if the party moving to strike a cause of action has met its initial burden to show that the cause of action arises from an act in furtherance of the moving party's right of petition or free speech. Then, if the court determines that showing has been made, the court determines whether the opposing party has demonstrated a probability of prevailing on the claim. (*Navelier v. Sletten* (2002) 29 Cal.4th 82, 88.)

Step one: "At the first step, the moving defendant bears the burden of identifying all allegations of protected activity, and the claims for relief supported by them. When relief is sought based on allegations of both protected and unprotected activity, the unprotected activity is disregarded at this stage. If the court determines that relief is sought based on allegations arising from activity protected by the statute, the second step is reached." (*Baral v. Schnitt* (2016) 1 Cal.5th 376, 396.)

There are four categories of protected speech for an anti-SLAPP motion (Code Civ. Proc. § 425.16(e)):

1. statements made before a legislative, executive, or judicial proceeding, or any other official proceeding authorized by law;
2. statements made in connection with an issue under consideration or review by a legislative, executive, or judicial body, or any other official proceeding authorized by law;
3. statements made in a place open to the public or a public forum in connection with an issue of public interest; or
4. any other conduct in furtherance of the exercise of the constitutional right of petition or the constitutional right of free speech in connection with a public issue or an issue of public interest.

A defendant meets its burden by showing that the act underlying the claim fits one of the categories enumerated in CCP § 425.16(e). (*City of Cotati v. Cashman* (2002) 29 Cal.4th 69, 78; *Baral v. Schnitt* (2016) 1 Cal.5th 376, 396—at first step, defendant has "burden of identifying all allegations of protected activity, and the claims for relief supported by them"; *Bonni v. St. Joseph Health System* (2021) 11 Cal.5th 995, 1009.)

Step two: If the moving defendant meets his initial burden, the burden shifts to the plaintiff and the plaintiff must demonstrate that the complaint is both legally sufficient and supported by a prima facie showing of facts to sustain a favorable judgment. (*Premier Med. Mgt. Systems, Inc. v. California Ins. Guar. Ass'n* (2006) 136 Cal.App.4th 464, 472.) Whether a complaint could be amended to state a valid claim is immaterial. (*Id.*) The "probability of prevailing" standard is the same standard governing a motion for summary judgment, and it is plaintiff's burden to show facts that would support a judgment in plaintiff's favor. (*Kyle v. Carmon* (1999) 71 Cal.App.4th 901, 907.)

In opposing a SLAPP motion, plaintiff must present admissible evidence and cannot rely on the allegations in its complaint. (*Roberts v. Los Angeles County Bar Ass'n* (2003) 105 Cal.App.4th 604, 613-614.) Affidavits or declarations "on information and belief" are hearsay and inadmissible evidence to show a probability that plaintiff will prevail. (*Evans v. Unkow* (1995) 38 Cal.App.4th 1490, 1497.)

"Only a cause of action that satisfies both prongs of the anti-SLAPP statute-i.e., that arises from protected speech or petitioning *and* lacks even minimal merit-is a SLAPP, subject to being stricken under the statute." (*Navellier v. Sletten* (2002) 29 Cal. 4th 82, 89.)

In prong one, “the focus of the statute is not the form of plaintiff's cause of action, but the defendant's activity that gives rise to the asserted liability.” (*Midland Pacific Bldg. Corp. v. King* (2007) 157 Cal.App.4th 264, 272.) The statute identifies four categories of protected petitioning and free speech activities. (Civ. Proc. Code § 425.16, subd. (e)(1) to (4).) The law expressly provides that it “shall be construed broadly [Civ. Proc. Code § 425.16, subd. (a)] to encourage participation in free speech and petition activities.” (*Wanland v. Law Offices of Mastagni, Holstedt & Chiurazzi* (2006) 141 Cal.App.4th 15, 22.)

Analysis

At issue in this Motion is the fourth cause of action for slander of title in the TACC.

Courts have consistently held that the recording and filing of a notice of lis pendens falls squarely within the scope of protected activity under the anti-SLAPP statute. (*See Zhang v. Jenevein* (2019) 31 Cal. App. 5th 585, 594.)

Recording of a notice of lis pendens (notice of pending lawsuit) is a “writing made in connection with an issue under consideration by a ... judicial body” (CCP § 425.16(e)) and thus “squarely within” the definition of the anti-SLAPP statute. (*See Manhattan Loft, LLC v. Mercury Liquors, Inc.* (2009) 173 CA4th 1040, 1050.)

Thus, we move to the second step of the analysis.

The elements of a cause of action for slander of title are (1) a publication, which is (2) without privilege or justification, (3) false, and (4) causes pecuniary loss. (*La Jolla Group II v. Bruce* (2012) 211 Cal.App.4th 461, 472; *Manhattan Loft, LLC v. Mercury Liquors, Inc.* (2009) 173 Cal.App.4th 1040, 1051.)

The critical question in this Motion is whether the publication in the present case—the lis pendens recorded by Rosette—was privileged under Civil Code section 47(b).

Civil Code section 47(b) provides that, with certain exceptions, a publication made in any judicial proceeding is privileged. Because of the vital purposes served by this privilege, it is “ ‘absolute’ ” in nature and applies to all causes of action except malicious prosecution. (*Hagberg v. California Federal Bank* (2004) 32 Cal.4th 350, 360; *Silberg v. Anderson* (1990) 50 Cal.3d 205, 215.)

The purposes of Civil Code section 47(b) are “ ‘to afford litigants and witnesses free access to the courts without fear of being harassed subsequently by derivative tort actions, to encourage open channels of communication and zealous advocacy, to promote complete and truthful testimony, to give finality to judgments, and to avoid unending litigation.’ [Citation.]” (*Jacob B. v. County of Shasta* (2007) 40 Cal.4th 948, 955.) To further these important goals, the privilege is applied broadly. (*Ibid.*)

“The usual formulation is that the privilege applies to any communication (1) made in judicial or quasi-judicial proceedings; (2) by litigants or other participants authorized by law; (3) to achieve the objects of the litigation; and (4) that have some connection or logical relation to the action. [Citations.]” (*Silberg v. Anderson, supra*, 50 Cal.3d at p. 212.) It applies to “any publication required or permitted by law in the course of a judicial proceeding to achieve the objects of the litigation, even though the publication is made outside the courtroom and no function of the court or its officers is involved.” (*Id.* at p. 212.)

“ ‘A lis pendens is a recorded document giving constructive notice that an action has been filed affecting title or right to possession of the real property described in the notice.’ [Citation.] A lis pendens may be filed by any party in an action who asserts a ‘real property claim.’ (Code Civ. Proc., § 405.20.) Section 405.4 defines a “Real property claim” as ‘the cause or causes of action in a pleading which would, if meritorious, affect (a) title to, or the right to possession of, specific real property....’ ” (*Kirkeby v. Superior Court* (2004) 33 Cal.4th 642, 647.)

“A recorded lis pendens is not a privileged publication unless it identifies an action previously filed with a court of competent jurisdiction which affects the title or right of possession of real property, as authorized or required by law.” As a result of this provision, “the litigation privilege ... applies if the lis pendens (1) identifies an action ‘previously filed’ in a court of competent jurisdiction that (2) affects title or right to possession of real property.” (*Alpha & Omega Development, LP v. Whillock Contracting, Inc.* (2011) 200 Cal.App.4th 656, 665; *La Jolla Group II v. Bruce* (2012) 211 Cal.App.4th 461, 473.)

“ ‘In deciding the question of potential merit, the trial court considers the pleadings and evidentiary submissions of both the plaintiff and the defendant [citation]; though the court does not weigh the credibility or comparative probative strength of competing evidence, it should grant the motion if, as a matter of law, the defendant's evidence supporting the motion defeats the plaintiff's attempt to establish evidentiary support for the claim.’ [Citation.] Accordingly, ‘the motion to strike should be granted if the defendant “defeats the plaintiff's showing as a matter of law, such as by establishing a defense or the absence of a necessary element.” ’ ” (*La Jolla Group II, supra*, 211 Cal.App.4th at pp. 470–471.)

Here, the lis pendens was recorded and filed on 9/17/25. (ROA 52.)

But the initial Complaint did not contain a real property claim. It brought claims for: 1) breach of contract; 2) money had and received; 3) negligence; 4) conversion; and 5) receiving stolen property in violation of Penal Code §496.

The First Amended Complaint (FAC) was filed well after the lis pendens – not previously filed – and still does not contain a real property claim. The FAC adds two claims: 6) Violation of Civil Code § 1946.2, and 7) Wrongful Constructive Eviction.

Code of Civil Procedure § 405.4 defines a “real property claim” as a “cause or causes of action in a pleading which would, if meritorious, affect (a) **title to, or the right to possession** of, specific real property ...” (Code of Civil Procedure § 405.4, emphasis added.) It does not matter the merits of real property claim; rather, the only requirement is that the lis pendens is based on a real property claim. If so, then it is privileged under Civil Code section 47(b)(4).

In the seventh cause of action in the FAC, which again was not in existence at the time the lis pendens was filed, Rosette asks for “possession of the property can be restored once the house is brought into compliance”. (FAC, ¶71.)

California recognizes the tort of wrongful eviction. (*Nativi v. Deutsche Bank National Trust Co.* (2014) 223 Cal.App.4th 261, 293 citing *Barkett v. Brucato* (1953) 122 Cal.App.2d 264, 275, 264 P.2d 978.) “The same basic policy against forcible or other wrongful ouster that gives the tenant the summary remedy to obtain restoration of possession [citation] gives the tenant a tort action for damages for wrongful eviction. [Citations.]” (*Nativi, supra*, 223 Cal.App.4th at p. 293.) “An essential element of a wrongful eviction claim is that the tenant

has vacated the premises. [Citations.]” (*Nativi, supra*, 223 Cal.App.4th at p. 293, *citing Ginsberg v. Gamson* (2012) 205 Cal.App.4th 873, 900.)

Here, Rosette does not allege an ongoing lease interest which would allow her a right to possession in the FAC. The FAC then alleges that “Upon expiration of the lease, the tenancy was converted to a month to month tenancy on the same terms set forth in the lease, including Defendants’ requirement that Plaintiff pay \$3,000 per week.” (FAC, ¶19.) Further, when certain adverse conduct by a landlord constitutes a constructive eviction, the aggrieved tenants are entitled to immediately terminate their tenancies. The tenant's obligations under the lease are extinguished, and the tenant need not give the landlord prior notice or an opportunity to cure the conduct. (*Kulawitz v. Pacific Woodenware & Paper Co.* (1944) 25 Cal 2d 664.) It appears to be a way to get out of a lease, not for possession.

On Reply, Plaintiff cites to *Kirkeby v. Superior Court* (2004) 33 Cal.4th 642, 649 as support that she has brought a real property claim, but that case involved a claim of fraudulent transfer and possession of the property and is not on point.

Even if the Court considers the FAC, which was filed after the lis pendens, Rosette cites no case allowing her to claim possession in a wrongful eviction claim. Thus, there is no real property claim alleged. Thus, the litigation privilege does not bar the fourth cause of action for slander of title in the TACC.

The Motion is denied.

Rosette shall serve notice of this Order.

Case Management Conference

The case management conference is continued to February 1, 2027 at 10:00 a.m. in Department C27. Each party ordered to serve notice shall include the scheduled CMC in the notice.